

OFFICE OF THE SECRETARY

PO Box 942883
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July 29, 2020

The Honorable W. Arvid Johnson
Judge of the Superior Court
County of Yolo
1000 Main Street
Woodland, CA 95695

Re: Kim Allen Lachappelle
CDCR No: V68441
Case No: 042459
Date of Sentence: February 3, 2005

Dear Honorable W. Arvid Johnson:

The purpose of this letter is to provide the court with the authority to resentence inmate Kim Lachappelle, V68441, pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1), based upon his exceptional conduct while incarcerated. PC Section 1170, subdivision (d)(1) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

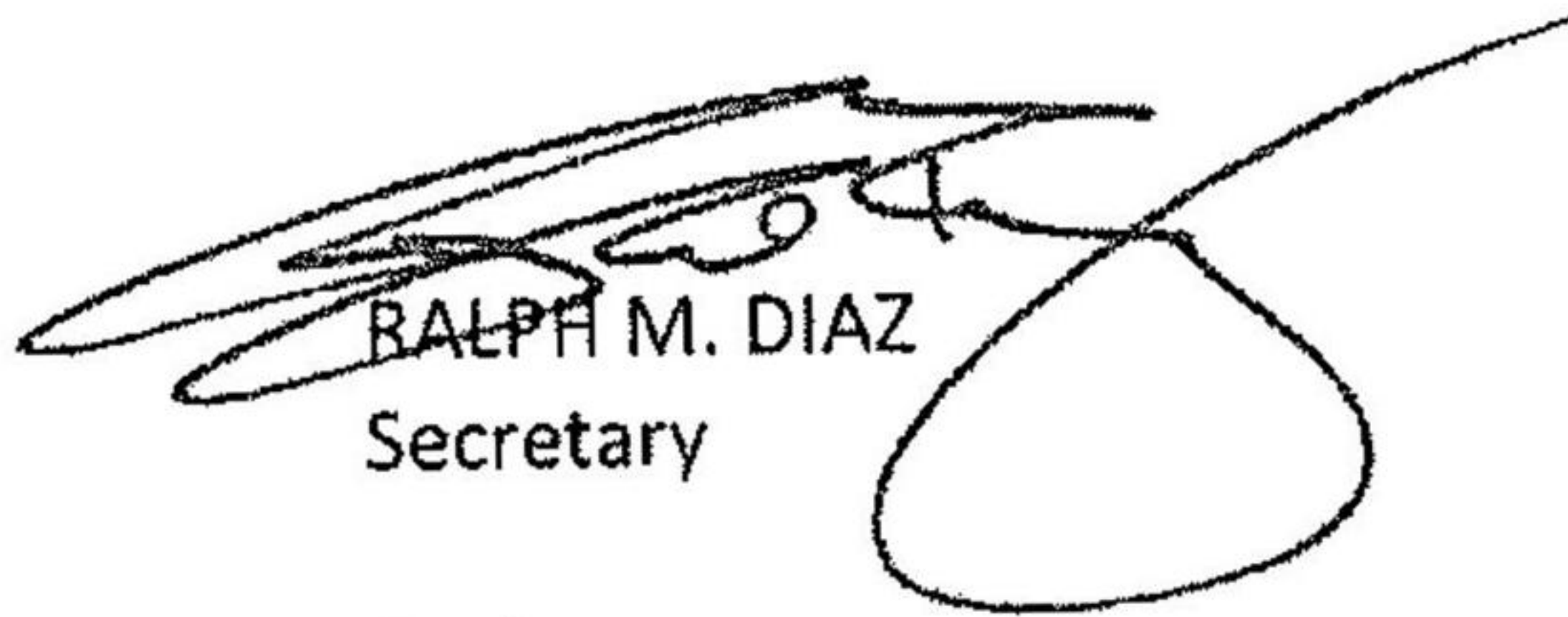
As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

Inmate Lachappelle has received two Rules Violation Reports, but has remained disciplinary free since September of 2009. Inmate Lachappelle is currently assigned as a Dining Room Worker. Inmate Lachappelle also participates in Celebrate Recovery. Inmate Lachappelle has previously participated in Anger Management, Narcotics Anonymous/ Alcoholics Anonymous, Alternatives to Violence, as well as various fundraisers. Lachappelle has received 15 General and Laudatory Chrono's from these Self-Help Group Sponsors acknowledging his commitment and dedication to these Self-Awareness and Improvement Groups.

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Having reviewed the enclosed documentation it appears that inmate Lacheppelle's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d)(1), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,



RALPH M. DIAZ
Secretary

Enclosures:

Abstract of Judgment

Minute Order

Court Information-Charging Documents

Cumulative Case Summary

cc: Honorable Janet Gaard, Presiding Judge
Yolo County District Attorney's Office
Yolo County Public Defender's Office